

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to the Interstate Transmission System	)))	Docket No. RM26-4-000
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COMMENTS OF THE ENTERGY OPERATING COMPANIES

In response to the Commission’s October 27, 2025 Notice Inviting Comments,¹ Entergy Services, LLC, (“Entergy Services”) on behalf of the Entergy Operating Companies,² offers these comments and recommendations as the Commission considers the Department of Energy’s proposed advance notice of proposed rulemaking (“proposed ANOPR”) regarding the interconnection of large loads, and evaluates what next actions to take in response. The Entergy Operating Companies appreciate the Commission’s consideration of these important issues, as well as the opportunity to provide input based on their experience.

I. Background and Summary of Position

The Entergy Operating Companies are vertically-integrated electric utilities that collectively serve approximately 3 million electric customers primarily in the States of Arkansas, Louisiana, Mississippi, and Texas. Each of the Entergy Operating Companies is a wholly-owned indirect subsidiary of Entergy Corporation. The Entergy Operating Companies’ retail activities are generally subject to the jurisdiction of their respective State commissions or, in Entergy New Orleans’ case, the Council of the City of New Orleans. These retail regulatory authorities review

¹ *Interconnection of Large Loads to the Interstate Transmission System*, FERC Docket No. RM26-4-000, Notice Inviting Comments (Oct. 27, 2025).

² The Entergy Operating Companies are Entergy Arkansas, LLC (“Entergy Arkansas”), Entergy Louisiana, LLC (“Entergy Louisiana”), Entergy Mississippi, LLC, Entergy New Orleans, LLC (“Entergy New Orleans”), and Entergy Texas, Inc.

each Operating Company’s retail rates and, among other things, also have jurisdiction to consider requests for siting authority and for certificates for the companies to construct, procure, and operate new generation facilities.³

Recently, for example, the Louisiana Public Service Commission (“LPSC”), which has retail jurisdiction over Entergy Louisiana, conducted a proceeding to evaluate generation and transmission resources needed to establish service to a hyperscale data center to be developed by a subsidiary of Meta Platforms, Inc. (“Meta”) and located in North Louisiana.⁴ In September 2025, Entergy Arkansas filed an application with the Arkansas Public Service Commission to request approval of a special rate contract with a subsidiary of Alphabet, Inc., for electric service to a new large-scale data center in Arkansas.⁵

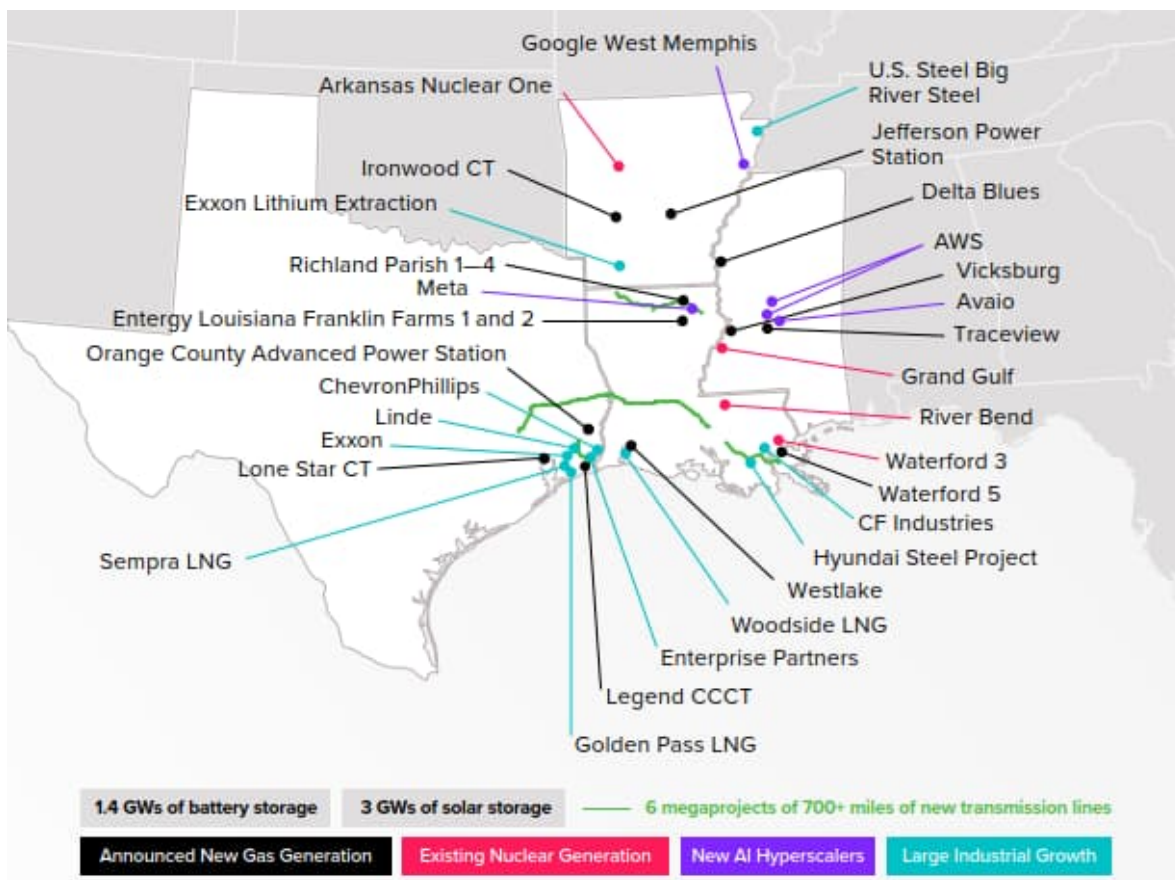
The Entergy Operating Companies support the Department of Energy’s overall policy objective of ensuring that large loads have timely access to transmission service. We appreciate and commend all of the Administration’s efforts to achieve energy dominance and win the Artificial Intelligence (“AI”) race. A July 2025 White House directive, *Winning the Race:*

³ Ark. Code Ann. § 23-3-201; The Louisiana Public Service Commission’s September 20, 1983 General Order, as amended by General Order (May 27, 2009), *In re: Possible modifications to the September 20, 1983 General Order to allow (1) for more expeditious certifications of limited-term resource procurements and (2) an exception for annual and seasonal liquidated damages block energy purchases*, LPSC Docket No. R-30517, available at <https://lpscpubvalence.lpsc.louisiana.gov/portal/PSC/DocumentDetails?documentId=28978>; Miss. Code Ann. § 77-3-14; New Orleans City Code Chapter 158, Art. V, Electricity, Least Cost Resource Plan, §§ 158-731 *et seq.*; Texas Pub. Util. Reg. Act. §§ 14.001, 37.051(a), 37.058.

⁴ *Entergy Louisiana, LLC, In re: Application for approval of generation and transmission resources in connection with service to a single customer for a project in North Louisiana*, LPSC Docket No. U-37425. On August 20, 2025, the LPSC voted to approve a settlement providing for approval to construct the requested generation and transmission projects. See Louisiana Pub. Serv. Comm’n Order No. U-37425 (Aug. 29, 2025).

⁵ *In the matter of Entergy Arkansas, LLC’s Application for approval to enter into a special rate customer contract and for all other related approvals*, Arkansas Pub. Serv. Comm’n Docket No. 25-055-P.

America’s AI Action Plan, called on the private sector to build the “vast AI infrastructure and the energy to power it.”⁶ That is precisely what is underway in the Gulf South. In the Entergy Operating Companies’ service territories, we are seeing and embracing the step change in load growth that the proposed ANOPR cites as the basis for reform: In our third quarter update, we announced a data center customer pipeline of 7 gigawatts (“GW”) to 12 GW, an increase of 2 GW from the prior quarter.⁷ To meet these and other customers’ needs, we plan to construct more than 8 GW of additional dispatchable generation over the next five years. Below is a map showing these planned new facilities and many of our large customers:



⁶ America’s AI Action Plan at 1, available at <https://www.whitehouse.gov/wp-content/uploads/2025/07/Americas-AI-Action-Plan.pdf>.

⁷ Utility Dive, “Gas continues to dominate Entergy plans as data center pipeline grows” (Nov. 3, 2025), available at <https://www.utilitydive.com/news/gas-continues-to-dominate-entergy-plans-as-data-center-pipeline-grows/804521/>.

This new dispatchable generation needs to obtain generator interconnection agreements (“GIAs”) and to be processed through the Midcontinent Independent System Operator, Inc.’s (“MISO”) interconnection queue. The Commission was instrumental in approving MISO’s expedited resource addition study (“ERAS”) process to allow us to obtain GIAs on a much faster time frame than MISO’s current interconnection queue.⁸ As a result of the ERAS approval, the Entergy Operating Companies made 10 submittals into MISO’s ERAS process (totaling 14 generating units and roughly 9000 MW). The MISO ERAS process, however, is presently capped at 50 submissions. Our understanding is that all 50 slots in MISO ERAS are now full. The Commission should build on the success of ERAS by making it permanent, while retaining its rigorous eligibility requirements tied to demonstration of the need for a new resource to meet load additions, and removing the caps on participation. This would provide a priority generation interconnection pathway to allow load serving entities (“LSEs”) to quickly add new generation facilities to the grid when they can be demonstrated to be needed to serve load additions. An expedited generator interconnection process would dramatically speed up the addition of new generation needed to help the nation achieve energy dominance.

In short, we take seriously our obligation to serve these and other new customers, as well as our existing customers, and we have been successful in meeting our new customers’ timelines. The Entergy Operating Companies believe our existing processes for the interconnection and service to large loads are working, as they balance new customer timelines with secure, reliable, and affordable service to all customers using existing regulatory frameworks. We are concerned that a nationwide one-size fits all rule issued by the Commission could overstep State jurisdiction over retail service and disrupt effective State-level resource planning processes. We therefore

⁸ *Midcontinent Indep. Sys. Operator, Inc.*, 192 FERC ¶ 61,064 (2025).

urge the Commission to act carefully and strategically so that it does not disrupt well-functioning processes.

Some of the principles outlined in the proposed ANOPR should enhance, rather than potentially disrupt, existing interconnection processes. The Entergy Operating Companies support such principles. For example, we agree that the study of load and generation additions together can result in a more efficient and cost-effective identification of transmission upgrades.⁹ We also agree that it is reasonable to take steps to deter speculative loads from delaying the interconnection of genuine projects.¹⁰ And we agree that it is critical that utilities, the North American Electric Reliability Corporation (“NERC”), and others consider the potential reliability impacts that might flow from any reforms to the load interconnection process, and whether new reliability standards are needed.¹¹

There are other principles in the proposed ANOPR that are not sufficiently defined for the Entergy Operating Companies to take a position at this time. For these, we recommend that the Commission offer additional details for public consideration and comment:

- the principle that “load and hybrid facilities should be responsible for 100% of the upgrades that they are assigned through the interconnection studies” and the possibility that “such costs” may be “offset through a crediting mechanism”¹² —
 - o it is not clear how the network upgrades associated with the interconnection studies will be fully allocated; and

⁹ Proposed ANOPR at P 20.

¹⁰ See *id.* at P 21.

¹¹ See *id.* at P 31.

¹² *Id.* at P 25.

- o it is not clear who would fund the potential “offset” – other new loads, existing customers, or some other entity.
- the “responsibilities” of utilities serving large loads¹³ —
 - o it is not clear what is meant by “be responsible for,” and how or whether it is intended to affect existing Regional Transmission Organization (“RTO”) or Independent System Operator (“ISO”) tariffs that define charges for transmission service.

Finally, given our recent experience developing service agreements for large load customers, we have identified discrete legal and policy concerns about the potential consequences of a nationwide interconnection rule, and we offer corresponding recommendations, which we urge the Commission to consider before it takes action.

First, the Commission should be careful to ensure that its rule does not overstep the clear jurisdiction of States over retail service agreements. While transmission service is often a necessary element of providing a customer with access to electricity, the rates, terms, and conditions under which utilities provide retail electric service remains squarely within the jurisdiction of the States. The Commission should be explicit about States retaining authority over retail service.

Second, it is imperative that the Commission recognize regional differences in supply planning, and ensure that any action it takes is flexible enough to support, rather than undermine, frameworks that are already effectively interconnecting new large loads. Such flexibility is essential to avoid potentially adverse reliability consequences as well. The Commission should not attempt to create uniform or nationwide processes. Overall, the Commission should be

¹³ *Id.* at PP 28, 29.

mindful of the different governing frameworks and needs of individual States, utilities, and RTOs/ISOs.

Third, the Commission should set the threshold for “large loads” at a larger megawatt (“MW”) size. There are both jurisdictional and practical reasons to do so: A higher threshold is less likely to step into any of the jurisdictional traps that the proposed ANOPR has recognized, and it is also more likely to enable the rule to be administered effectively.

Fourth, the Commission should carefully consider the reliability ramifications of interconnecting hybrid loads under rules that are different from traditional loads. It would be overly simplistic to assume that a hybrid load’s net injection or withdrawal impacts on the grid will be constant over any period of time, and significant changes to the grid (both generation and load) need to be studied properly to ensure that the bulk electric system can continue to operate safely and reliably.

II. Entergy’s Process for Interconnecting Large Loads Works

Multiple Entergy Operating Companies have entered into electric service agreements to supply power to data center customers: Google is developing a data center in Crittenden County, Arkansas; Meta is developing a data center in Richland Parish, Louisiana; and Amazon Web Services and Avaio are developing data centers in Mississippi.¹⁴ In addition to data center growth, we are seeing continued industrial growth throughout our service territories, mirroring the national increase in manufacturing of materials and continued development of natural gas.

Providing service to these new customers is a win-win proposition for Entergy’s existing customers and communities. It enables the Entergy Operating Companies to further modernize their system to improve reliable service to all customers, while keeping bills reasonable.

¹⁴ General information about the Entergy Operating Companies’ support for data center projects is available on its website at <https://www.entergy.com/datacenters>.

Additionally, economic investment in the region will allow our communities to benefit from improved local infrastructure (*e.g.*, new roads, new schools, and new water treatment centers) and better job opportunities.

In order to secure these benefits without sacrificing reliability, the Entergy Operating Companies follow important baseline principles when new loads request service. We evaluate the additional generating capacity, if any, that would be needed to serve the customer. We identify and determine rate structures that will be fair to both new and existing customers, and we negotiate electric service agreements that support these structures. We also consider the systemwide transmission and distribution reliability impacts of the potential new load (and potentially related generation) additions. Input and oversight by our retail regulators is an important part of this process, and we are bound to follow the applicable rules and tariffs in each of our retail jurisdictions. While we work within MISO's planning processes at the transmission level, the interconnection of a new load onto the transmission system is just one piece of the broader puzzle that we solve when we work with new large customers. Importantly, any new loads that we ask MISO to study are based on concrete information and commitments; we do not ask MISO to study speculative loads.

We have been able to perform this comprehensive evaluation and to negotiate fair terms with new customers according to timelines that satisfy their needs. A large part of our ability to move quickly is due to existing retail frameworks that are efficient (in other words, proceedings can be resolved within a year, or legislation pre-approves certain types of generation), while still providing sufficient due process to interested parties.¹⁵ Disrupting these frameworks would

¹⁵ For example, the LPSC proceeding (LPSC Docket No. U-37425) to consider the generation and transmission resources needed to serve significant new load associated with a

almost certainly delay our ability to serve new customers. Thus, as discussed further below, we urge the Commission to focus its efforts on discrete areas within its jurisdiction.

III. The Commission Should Continue To Recognize States' Jurisdiction

A. The Commission's Jurisdiction Extends to Interconnections of Large Load Customers

States long have exercised authority over new interconnections of retail customers to the power grid.¹⁶ Thus, to determine whether the Commission has authority to regulate large load interconnections, it is necessary to determine whether Congress has conferred that authority on the Commission.¹⁷ As the Supreme Court has stated:

[T]he best way to answer such a question—i.e., whether federal power may be exercised in an area of pre-existing state regulation—is to examine the nature and scope of the authority granted by Congress to the agency.” In other words, we must interpret the statute to determine whether Congress has given FERC the power to act as it has, and we do so without any presumption one way or the other.¹⁸

The proposed ANOPR cites four bases for Commission jurisdiction. First, the proposed ANOPR points to the Commission's jurisdiction over interstate transmission service.¹⁹ Second, the proposed ANOPR cites to the Commission's jurisdiction over practices directly affecting Commission-jurisdictional wholesale sales of electricity.²⁰ Third, the proposed ANOPR states that it does not impinge on States' authority over retail electricity sales, siting, expansion, or

Meta data center was resolved within ten months. That proceeding included extensive testimony, discovery, a contested hearing, and multi-party settlement negotiations.

¹⁶ *E.g., PJM Interconnection, L.L.C.*, 190 FERC ¶ 61,115 at P 72 (2025) (the Commission “has not historically exercised jurisdiction over any and all transmission-level interconnections of retail load”).

¹⁷ *New York v. FERC*, 535 U.S. 1, 18 (2002).

¹⁸ *Id.* (quoting *Louisiana Pub. Serv. Comm'n v. FCC*, 476 U.S. 355, 374 (1986), citation omitted).

¹⁹ Proposed ANOPR at P 13.

²⁰ *Id.* at P 14.

modification of generation facilities.²¹ Finally, the proposed ANOPR states that “any contrary view of the proposed reforms conflicts with the [Federal Power Act’s (‘FPA’)] core purposes.”²² Entergy Services addresses each of these claims of jurisdiction in turn.

Under Section 201 of the FPA, the Commission has exclusive jurisdiction over “the transmission of electric energy in interstate commerce” and “the sale of electric energy at wholesale in interstate commerce.”²³ Section 205 of the FPA provides the Commission authority to regulate “all rates and charges made, demanded, or received by any public utility for or in connection with the transmission or sale of electric energy subject to the jurisdiction of the Commission,” including “all rules and regulations affecting or pertaining to such rates or charges.”²⁴ The Commission’s jurisdiction over interstate transmission service is “without regard to whether the transmissions are sold to a reseller or directly to a consumer[.]”²⁵ The Commission’s jurisdiction over sales of power, on the other hand, is limited to wholesale sales.²⁶

The Commission has identified interconnection as an element of transmission service,²⁷ and “ensur[ing] effective transmission of electric power” is one of the “core objects” of the FPA.²⁸ Moreover, the Supreme Court has construed Section 201 of the FPA broadly.²⁹ Entergy Services agrees with the proposed ANOPR’s view that, under the Commission’s broad authority

²¹ *Id.* at P 15.

²² *Id.* at P 16.

²³ 16 U.S.C. § 824(b).

²⁴ *Id.* § 824d(a).

²⁵ *New York v. FERC*, 535 U.S. at 20.

²⁶ *E.g., id.*

²⁷ *E.g., Standardization of Generator Interconnection Agreements & Procs.*, Order No. 2003, 104 FERC ¶ 61,103 at PP 12, 20 (2003), *order on reh’g*, Order No. 2003-A, 106 FERC ¶ 61,220, *order on reh’g*, Order No. 2003-B, 109 FERC ¶ 61,287 (2004), *order on reh’g*, Order No. 2003-C, 111 FERC ¶ 61,401 (2005), *aff’d sub nom. Nat’l Ass’n of Regul. Util. Comm’rs v. FERC*, 475 F.3d 1277 (D.C. Cir. 2007).

²⁸ *FERC v. Elec. Power Supply Ass’n*, 577 U.S. 260, 290 (2016) (“EPSA”).

²⁹ *E.g., New York v. FERC*, 535 U.S. at 15.

over interstate transmission service, the Commission may regulate the rates, terms, and conditions of interconnections of large loads to the transmission system.

On the other hand, Entergy Services does not agree that the Commission's jurisdiction over practices directly affecting Commission-jurisdictional wholesale sales of electricity provides it authority to regulate interconnections of large loads. The ANOPR identifies no jurisdictional nexus between the interconnections of retail customers to the transmission system and rates for wholesale sales of power, and if it did, there would be no logical limit to such nexus. In other words, if the ANOPR's reliance on the rates of wholesale sales of power were the basis for Commission jurisdiction over interconnections of large loads, then it would also follow that the Commission would have jurisdiction over *all* retail customers, a result that it is at odds with the FPA (and hence one that the proposed ANOPR does not intend, as noted in paragraph 16 of the proposed ANOPR). The Commission thus should not attempt to rely on its jurisdiction over wholesale electricity rates as authority to regulate interconnections of large loads.

With regard to the proposed ANOPR's third claim related to the Commission's jurisdiction—that the proposal does not impinge on States' authority over retail electricity sales, siting, expansion, or modification of generation facilities—the proposed ANOPR is not sufficiently detailed to address this claim. To remedy this ambiguity, any proposed rule should be explicit that the Commission is not ordering unbundling of retail services in States that have not implemented such unbundling, nor is it limiting States' authority to set the rates, terms and conditions of retail service to large loads. For example, as Entergy Services discusses below, a State may place conditions on retail service to a new customer to ensure reliability of service to all customers, including conditioning the commencement of new service on the availability of

adequate new resources. The Commission should ensure that it does not impinge on that State authority.

As to the ANOPR's statement that any contrary view of the proposed reforms conflicts with the core purposes of the FPA, that statement is true only to the extent that the Commission has jurisdiction in the first place. Since ensuring effective transmission service is one of the core objectives of the FPA, to the extent Commission actions are required to ensure effective, Commission-jurisdictional transmission service, those actions would be consistent with a core purpose of the FPA.

Finally, Entergy Services notes that while the Commission's jurisdiction over interstate transmission service provides it authority over interconnections of large loads to the transmission system, the Commission already exercises jurisdiction over generator interconnections. If the Commission's action is limited to providing new rules for existing load that co-locates with new generation or existing generation interconnections, the Commission does not need to expand its exercise of jurisdiction to interconnections of retail customers.

B. The Commission's Jurisdiction Over Interconnections of Large Loads Does Not Extend to Matters Subject to States' Exclusive Jurisdiction

If the Commission decides to regulate retail interconnections, there are important limitations on the Commission's authority. These limitations apply in all instances, as States have jurisdiction over local delivery services in all instances.³⁰ Even when the Commission's seven-factor test concludes that no local distribution facilities are used in a given transaction (and thus that all facilities are transmission facilities subject to Commission jurisdiction), States still have "authority over the service of delivering electric energy to end users."³¹

³⁰ *Niagara Mohawk Power Corp. v. FERC*, 452 F.3d 822, 825 (D.C. Cir. 2006).

³¹ *Id.*

In a Final Rule, the Commission should be very clear about the basis for its jurisdiction and the jurisdictional lines it is drawing. Clarity in this regard is beneficial to everyone. It may limit the number of issues raised on appeal, it will ensure clearer handoffs between the roles of States and the Commission, and perhaps most importantly, it will let potential large customers and those who will serve them know where to go for what purpose. The Commission should be explicit about States retaining authority over retail service, consistent with the following principles.

First, States have exclusive jurisdiction over retail sales and retail energy service agreements. State regulation over retail sales is robust, involves complex proceedings, and addresses local issues unique to the particular jurisdiction. States have experience and the unique capability to grasp and balance competing local perspectives and interests. The Commission, on the other hand, has jurisdiction only over wholesale sales of power; it does not have jurisdiction over retail sales.³² The Commission thus may not assert jurisdiction over the rates, terms, or conditions of energy sales to retail customers.³³ This limitation on the Commission's jurisdiction applies even if the terms of retail service have a direct effect on wholesale rates.³⁴

The Commission cannot, for example, set the minimum or maximum amount of energy that a retail customer may purchase.³⁵ Other terms and conditions of retail service that are beyond the scope of the Commission's jurisdiction are (a) interruptibility of retail customer

³² *E.g., New York v. FERC*, 535 U.S. at 17 (“There is no language in the statute limiting FERC's transmission jurisdiction to the wholesale market, although the statute does limit FERC's sale jurisdiction to that at wholesale.”).

³³ *E.g., Tri-State Generation and Trans. Assoc., Inc.*, 193 FERC ¶ 61,070 at P 49 (2025).

³⁴ *EPSA*, 577 U.S. at 279-80.

³⁵ *Tri-State*, 193 FERC ¶ 61,070 at PP 48, 49.

loads, including whether a particular load is interruptible before native load customers, (b) minimum billing requirements for bundled retail customers, including minimum requirements for bundled retail transmission service, and (c) credit requirements applicable to retail load customers.

Second, the Commission does not have authority over local distribution facilities to the extent those facilities are used to make retail sales.³⁶ The proposed ANOPR recognizes this limitation on the Commission's jurisdiction, stating that any rules adopted by the Commission "should be limited to interconnections directly to transmission facilities, consistent with the Commission's seven-factor test."³⁷ The Commission should reject any calls to expand a Final Rule to interconnections to local distribution facilities.

Third, except as specified in the FPA, the Commission does not have jurisdiction over generating facilities.³⁸ Moreover, the Commission has recognized State authority over integrated resource planning, utility resource portfolios, and siting decisions.³⁹ In States that retain

³⁶ *New York v. FERC*, 535 U.S. at 22-23; *Detroit Edison Co. v. FERC*, 334 F.3d 48, 53 (D.C. Cir. 2003).

³⁷ Proposed ANOPR at P 18.

³⁸ 16 U.S.C. § 824(b).

³⁹ *E.g., Promoting Wholesale Competition Through Open Access Non-Discriminatory Trans. Servs. by Pub. Utils.; Recovery of Stranded Costs by Pub. Utils. and Transmitting Utils.*, Order No. 888, FERC Stats. & Regs. ¶ 31,036 at 31,782 n.544 (1996), *order on reh'g*, Order No. 888-A, FERC Stats. & Regs. ¶ 31,048 (1997), *order on reh'g*, Order No. 888-B, 81 FERC ¶ 61,248 (1997), *order on reh'g*, Order No. 888-C, 82 FERC ¶ 61,046 (1998), *aff'd in relevant part sub nom. Transmission Access Policy Study Group v. FERC*, 225 F.3d 667 (D.C. Cir. 2000), *aff'd sub nom. New York v. FERC*; *see also, e.g., PJM Interconnection, L.L.C.*, 192 FERC ¶ 61,085 at P 102 (2025) ("[t]he States have full authority over resource planning, the generation mix within their jurisdiction, decisions related to the siting and construction of generation resources"); *Midcontinent Indep. Sys. Operator, Inc.*, 180 FERC ¶ 61,141 (2022) (Christie, Comm'r, concurring at PP 3-4) ("Regardless of the details of the market designs of the various RTOs/ISOs . . . it is the states which retain the primary responsibility to ensure their load-serving entities (LSEs) have adequate resources to serve their states' consumers. While regional system operators — RTOs and ISOs — are responsible for balancing the system on a real-time operational basis to keep the lights on, RTOs/ISOs are not regional long-term Integrated

vertically-integrated utilities, review of resource planning choices — *i.e.*, decisions about how much new generation is needed, what type of generation will best serve loads, and where generation should be located — takes place in the context of evaluating the utilities’ provision of retail electric services. Again, States are active and thorough in exercising this jurisdiction. State proceedings to consider certification of new generating resources typically draw a number of intervenors, and require extensive discovery and hearing procedures in order to develop a robust record. Proposed resources are evaluated in such certification proceedings in the context of the utility’s existing portfolio as well as its forecasted needs and other planned resources, and the utility is always responsible for making prudent decisions.

The interconnection of large loads does not require the Commission to attempt to regulate generating facilities, integrated resource planning, utility resource portfolios, or siting decisions. In any Final Rule the Commission should ensure that it does not encroach on current regulation by the States in these regards.⁴⁰ For example, the proposed ANOPR states that “to the extent practicable, load and hybrid facilities should be studied together with generating facilities. Such an approach will allow for efficient siting of loads and generating facilities and thereby minimize

Resource Plan (IRP) planners of generating or other resources. Rather, *it is the states which have the ultimate authority to decide which resources get built and which get retired and whether and how their regulated LSEs have sufficient generating capacity or demand-side programs to ensure that the lights stay on for their states’ residents.* Yes, the market design of federally regulated RTO/ISO markets certainly affects the entry or exit of generating resources from those markets, but even in RTOs/ISOs the states still retain their inherent police-power authority to direct their LSEs to achieve resource adequacy in ways other than through RTO/ISO markets — including various forms of self-supply, such as rate-basing, or purchased power agreements or other bilateral arrangements. *This is particularly true in MISO . . .*” (emphasis added; footnotes omitted)).

⁴⁰ See *New York v. FERC*, 535 U.S. at 25-28 (finding that the Commission’s choice not to assert jurisdiction over bundled retail transmissions of electric energy in Order No. 888 represented a statutorily permissible policy choice where it was not necessary and raised “numerous difficult jurisdictional issues”).

the need for costly network upgrades.”⁴¹ While the Commission can establish rules for studying loads and generating facilities simultaneously (and we agree that simultaneous studies of related loads and generating facilities makes good sense), in doing so it must ensure that it does not impede State jurisdiction over resource planning, generation siting or mix, or retail electric service agreements.⁴²

Fourth, a State may place conditions on new loads that wish to locate within its jurisdiction. For example, a State may place conditions on a new load to ensure continued reliability of local service, including delaying service to the new retail customer until it has adequate resources. Such matters are within the exclusive jurisdiction of the States.⁴³ The Commission also should be careful to avoid any federal rules that might be interpreted as restraining State authority to order conditions designed to protect native load customers from cost shifts or other economic harm that can result from the interconnection of a new retail load. This includes allocation of costs that are incurred to comply with NERC requirements affected by the interconnection of a new load, accelerated cost recovery from a new large load, or use of contributions in aid of construction for required transmission upgrades.

Finally, the Commission should make clear that it is not ordering unbundling of retail services in States that have not implemented retail unbundling. As the Supreme Court stated in *New York v. FERC*, “[i]t is obvious that a federal order claiming jurisdiction over all retail

⁴¹ Proposed ANOPR at P 20.

⁴² *E.g.*, *Tri-State*, 193 FERC ¶ 61,070 at PP 48-49 (rejecting tariffs that address terms and conditions of retail sales); *PJM*, 190 FERC ¶ 61,115 at P 70 (“States also have authority over their generation resource mix, including through their siting authority. This means that which generating resources are sited and allowed to operate to serve co-located load is also a question of state law.” (citation omitted)).

⁴³ *See, e.g.*, Order No. 888, FERC Stats. & Regs. ¶ 31,036 at 31,782 n.544 (reliability of local service and utility buy-side and demand-side decisions are subject to exclusive jurisdiction of the States).

transmissions would have even greater implications for the States' regulation of retail sales — a state regulatory power recognized by the same statutory provision that authorizes FERC's transmission jurisdiction.”⁴⁴ Unbundling retail services is not necessary to address the concerns raised in the proposed ANOPR, and as in Order No. 888, the Commission should not attempt to do so. As a result, in a bundled retail State, the LSE will be the transmission customer to serve a new large load customer; the large load customer will not.

IV. Regional Differences Must Be Respected

“[T]he Commission has consistently rejected a one-size-fits-all approach in the various RTOs/ISOs due, in large part, to significant differences between each region and that there can be more than one just and reasonable rate.”⁴⁵ MISO, where the Entergy Operating Companies are members, “differs from other RTOs/ISOs because of the greater portion of load served by vertically integrated utilities that are subject to retail cost-of-service regulation compared to the prevalence of retail choice in other RTOs/ISOs.”⁴⁶ Given that various States and RTOs/ISOs operate under a multitude of regulatory structures, it is important that the Commission avoid blanket rules that fail to account for such differences. In particular, Entergy Services urges the Commission to avoid ordering any blanket rules that could interfere with retail jurisdictional resource planning that currently takes place in MISO South, as these processes are working well. In the same way that orderly transition plans are needed to ensure that reforms do not disrupt ongoing work,⁴⁷ the Commission should ensure that any reforms it directs do not disrupt well-functioning regional processes.

⁴⁴ *New York v. FERC*, 535 U.S. at 28.

⁴⁵ *Midcontinent Indep. Sys. Operator, Inc.*, 162 FERC ¶ 61,176 at P 57 (2018); *see also id.* at n.133 (citing additional authorities).

⁴⁶ *Id.* at P 57; *see also id.* at n.134 (citing additional authorities).

⁴⁷ *See* proposed ANOPR at P 30.

One existing forum that the Commission could leverage in order to work productively with the States on these issues is the Federal-State Current Issues Collaborative (the “Collaborative”).⁴⁸ The Collaborative (and a similar effort that preceded it, the Joint Federal-State Task Force on Electric Transmission) has previously offered a forum to facilitate the Commission’s consideration of physical security of the transmission system and gas-electric coordination.⁴⁹ As it pertains to the proposed ANOPR, the Collaborative could help to identify provisions that may be better suited or poorly suited for various regions, and may develop best practices to facilitate cooperation between the Commission and the States on large load interconnection issues.

Another example where Federal-State cooperation has worked well is in MISO’s ERAS process. MISO’s Commission-regulated tariff sets forth the requirements that govern generator interconnection applications, and in recognition of pressing resource adequacy needs, it relies on retail jurisdictions to verify whether particular generators are appropriate for the ERAS study.⁵⁰

With respect to the interconnection of large loads, in the Entergy Operating Companies’ experience, MISO’s process is adequate, and any improvements would be better identified through the stakeholder process. The MISO Transmission Expansion Process (“MTEP”) enables MISO to consider projects needed to address load growth within the MISO footprint, and MISO has established an expedited project review (“EPR”) procedure if there is a need to evaluate

⁴⁸ Additional information about the Collaborative is available on the Commission’s website at <https://www.ferc.gov/federal-state-current-issues-collaborative>.

⁴⁹ See *Joint Federal-State Task Force on Electric Transmission, Order Establishing the Federal and State Current Issues Collaborative*, 186 FERC ¶ 61,189 at P 2 (2024); *Federal and State Current Issues Collaborative*, Docket No. AD24-7-000, Notice of Meeting and Agenda (issued Apr. 14, 2025) (identifying gas-electric coordination and gas storage as issues for the April 2025 meeting of the Collaborative).

⁵⁰ MISO Open Access Transmission, Energy and Operating Reserve Markets Tariff (“MISO Tariff”), Attachment X, Generator Interconnection Procedures, section 3.9.1.

transmission upgrades on a faster timeframe. The cost allocation methodology associated with MTEP projects or EPR projects is already set forth in the MISO Tariff and MISO Business Practices Manual 20.⁵¹

In order to respect regional differences and to avoid disruption of processes that are already sufficient to provide for the interconnection of large loads, the Entergy Operating Companies recommend that the Commission take the following precautions.

First, with regard to the transition process for any new rule,⁵² the Commission should confirm that the rule will be prospective from its effective date and that it will not prejudice loads that have already begun an existing interconnection study process. An engagement in a study process may be evidenced by a written memorandum of understanding or letter of intent, or other written agreement.

Second, with regard to implementation, consistent with FPA Section 205, the Commission should allow individual utilities to submit proposals that specifically address the technical details involved in studying new loads or the requirement of operational limitations. Utilities have the most detailed knowledge of their overall systems, and are in the best position to determine how new large loads and hybrid loads should be studied, and to what extent there are technical solutions to address the types of issues raised in the proposed ANOPR, such as “unauthorized injections or withdrawals.”⁵³

Third, the Commission should eschew any formal or uniform federal queue requirement for loads. A one-size-fits-all, Commission-regulated queue process has the potential to be

⁵¹ See *id.*, Attachment FF, Transmission Expansion Planning Protocol, and MISO Business Practices Manual 20 rev. 33, section 4.1.4.

⁵² See proposed ANOPR at P 30.

⁵³ *Id.* at PP 22-24.

inefficient, and fraught with litigation and conflict. Moreover, the decision of where a business will locate a data center, manufacturing facility, or other industrial project, is highly fact-specific, and, importantly, States may seek to differentiate themselves in order to attract certain preferred facilities or businesses. A formal queue is not necessary.

Fourth, the Commission should consider enforcing any national standards that are developed in this proceeding only as a backstop. Where State processes are working well, there is no need to inject additional rules. But to the extent a public utility, pursuant to a State or region's process, fails to respond to a new load's attempt to interconnect, it may be reasonable for the Commission to step in. One option the Commission could consider is a procedure that would enable new loads to seek Commission enforcement of the obligation to initiate an interconnection study, if there is evidence that a utility has not responded to a request for one within a reasonable period.

Fifth, the Commission must not impose any rules that could result in large loads paying less than their fair share of transmission costs, which includes the costs that they cause as a result of the need for upgrades or other appropriate transmission system modifications so that these new loads can be safely and securely interconnected. Simply put, when a load is connected to the transmission system, it benefits from the reliability of that system, and it should pay for service in accordance with that benefit. Utilities should retain the ability to propose just and reasonable methods of ensuring that the appropriate level of costs are allocated to these customers, and the Commission should recognize that the States retain jurisdiction to decide retail cost allocation questions. The Commission should also respect the RTOs'/ISOs' region-specific rules for accomplishing this objective.

At the same time, the Commission should clarify and recognize that transmission (and transmission system-related) costs are only one component of the total costs that utilities may need to collect in order to serve large loads, and that retail regulators have jurisdiction over the remaining costs. These additional costs may include items such as storm costs, resilience and hardening costs, and other elements of retail electric service in addition to transmission. As discussed above, States retain exclusive jurisdiction over the rates, terms, and conditions of this service (including the allocation of these costs over multiple classes of customers).

V. The Proposed 20 MW Threshold for Defining a Large Load is Too Low

The proposed ANOPR defines a “large load” as greater than 20 MW,⁵⁴ consistent with how the Commission has defined large generation resources in the *pro forma* generator interconnection procedures proscribed by Order No. 2003. The proposed ANOPR invites “comment on alternative thresholds, including whether such a threshold is necessary at all.”⁵⁵ Under the proposed ANOPR, the 20 MW or greater threshold would be applied to both new and hybrid (*i.e.*, co-located) large load facilities.

Entergy Services urges the Commission to consider alternative thresholds above 20 MW and recommend a threshold of at least 100 MW. Anything less than a 100 MW threshold invites inefficiency, delay, and the potential for speculative projects to attempt to take advantage of any expedited process provided for under a final rule.

In Order No. 2003, the Commission established a set of interconnection procedures for transmission providers and a single, uniformly applicable interconnection agreement for generating facilities greater than 20 MW.⁵⁶ Since the order’s issuance in 2003, there have been

⁵⁴ Proposed ANOPR at n.1, P 19.

⁵⁵ *Id.* at P 19.

⁵⁶ Order No. 2003, 104 FERC ¶ 61,103 at P 1.

numerous advances in technology that have resulted in the proliferation of data centers and other large loads that were not anticipated by Order No. 2003. If the Commission adopts the same 20 MW threshold established in Order No. 2003 to define a “large load,” it will fail to consider that the ANOPR has a much different purpose than Order No. 2003. That distinction renders the 20 MW threshold inappropriate for the ANOPR or any Final Rule.

The purpose of Order No. 2003 was to standardize procedures and agreements for large generator interconnections to the national transmission grid in order to prevent discrimination against generators (*i.e.*, potential *sellers*) who wished to use the interstate transmission grid, as well as to ensure reliability and lower costs. In doing so, the Commission wanted to cast as wide a net as possible over the generators implicated by these procedures so as to protect the grid. However, with the proposed ANOPR, the Commission seeks to ensure the timely and orderly interconnection of large loads (*i.e.*, *buyers*) to the transmission system.⁵⁷ While grid reliability is always a priority for the Commission, numerous processes and standards already exist to ensure reliability is maintained, and the stated goal of the proposed ANOPR is to ensure timely interconnections of large loads. Regarding data centers and other large loads that are considered integral to national security,⁵⁸ time to market is of the essence. Therefore, it follows that casting

⁵⁷ Proposed ANOPR at P 1.

⁵⁸ In emphasizing the importance of data centers to national security, former Commission Chairman Willie Phillips stated that “[t]here is a clear, bipartisan consensus that maintaining U.S. leadership in Artificial Intelligence (AI) is necessary to maintaining our national security. Maintaining our nation's leadership in this ‘era-defining’ technology will require a massive and unprecedented investment in the data centers necessary to develop and operate those AI models. And make no mistake: access to reliable electricity is the lifeblood of those data centers.” *PJM Interconnection, L.L.C.*, 189 FERC ¶ 61,078, at *24 (2024) (Phillips, W., dissenting). The U.S. Cybersecurity and Infrastructure Security Agency considers data centers part of the broader Information Technology and Communications sectors which are recognized as part of the backbone of national resilience. See Cybersecurity and Infrastructure Security Agency, *Critical Infrastructure and Resilience*, <https://www.cisa.gov/topics/critical-infrastructure-security-and->

too wide of a net would only serve to impede and render less efficient any process determined in the proposed ANOPR proceeding.

Moreover, a threshold as low as 20 MW would create the potential for a backlog of projects and would greatly increase the burden in administering any program resulting from the proposed ANOPR. For example, in the Entergy Operating Companies' service territories, reducing the MW threshold for what is considered a "large load" in each service territory from 100 MW to 20 MW, would increase the number of existing customers that would qualify as a large load under the proposed ANOPR by more than four times. An increase of this magnitude would increase the administrative burden required to address projects eligible under any final rule. And these numbers reflect only existing projects. As noted above, the Entergy Operating Companies are experiencing unprecedented growth in demand from data centers and other large load projects, and in the generation needed to meet that demand. As such, this increase may be even greater in the near future. The 20 MW threshold also invites smaller, speculative projects to try to take advantage of any expedited treatment proscribed under a new rule resulting from the proposed ANOPR. Both the potential backlog and increased entry by speculative projects would inject inefficiency and delay into the process of interconnecting large loads to the transmission system. In an environment where speed to market is critically important to the development of large load opportunities, too many projects may be as harmful as too few.

In raising the proposed ANOPR's large load threshold to at least 100 MW, the Commission should be informed by the thresholds established by other entities that have

[resilience#:~:text=Critical%20Infrastructure%20are%20those%20assets,functions%20Americans%20depend%20on%20daily.](#)

considered large load issues. In a recent Executive Order (“EO”)⁵⁹ that addressed expediting the federal permitting process for large-scale data centers, the White House set a threshold of 100 MW for certain data center projects. The EO defined a “Data Center Project” as a “facility that requires greater than 100 megawatts (MW) of new load dedicated to AI inference, training, simulation, or synthetic data generation.”⁶⁰

In PJM Interconnection LLC (“PJM”), a large electric load is generally defined as a request of 50 MW or greater for the purpose of load forecasting and the “Large Load Additions” process.⁶¹ The 50 MW threshold was selected to align with the PJM Load Analysis Subcommittee recommendations for capturing significant trends not otherwise included in their standard models.⁶² On October 24, 2025, Southwest Power Pool (“SPP”) filed revisions to its Open Access Transmission Tariff with the Commission to propose a new High Impact Large Load (“HILL”) process.⁶³ SPP’s HILL process proposes mechanisms to incorporate large loads into SPP in a reliable manner and creates additional study and operational requirements.⁶⁴ In its

⁵⁹ Exec. Order 14,318, (Accelerating Federal Permitting of Data Center Infrastructure), 90 Fed. Reg. 35,385 (Jul. 28, 2025).

⁶⁰ *Id.*

⁶¹ PJM, *Large Load Additions: PJM CIFP initial proposal and Alternatives considered* (Sept. 15, 2025), <https://www.pjm.com/-/media/DotCom/committees-groups/cifp-lla/2025/20250915/20250915-item-07---pjm-initial-proposal-and-alternatives-considered---pjm-presentation.pdf>.

⁶² PJM launched the Critical Issue Fast Path initiative, a program which it intends to file with the Commission, to fast-track a stakeholder process to develop rules for interconnecting data centers and other large loads to its system while ensuring the region has enough power supplies.

⁶³ Southwest Power Pool, Inc., *Submission of Tariff Revisions to Add the High Impact Large Load Processes and High Impact Large Load Generation Assessment*, Docket No. ER26-247-000 (Oct. 24, 2025).

⁶⁴ *Id.* at 4.

proposal, SPP defines large loads as “50 MW or more if connected to the Transmission System at a voltage level greater than 69 kV.”⁶⁵

Multiple States that have established rules for large load interconnections also use a higher threshold. For example, in Texas, a large load is defined by the Electric Reliability Council of Texas (“ERCOT”) as 75 MW or larger.⁶⁶ Recently-enacted Texas Senate Bill 6 (“SB 6”) also uses a threshold of 75 MW to define a “Large Load” customer.⁶⁷ Through SB 6, the state legislature has directed the Public Utility Commission of Texas to establish a program to provide an expedited process for interconnection of large loads. The MW threshold applies to facilities such as data centers, cryptocurrency mining operations, and large manufacturing plants requesting new or expanded interconnection to the ERCOT grid.

Earlier in 2025, the Georgia Public Service Commission approved a new rule that provides additional oversight and rate protections to consumers to address risks associated with new large load customers.⁶⁸ The new rules allow for the use of additional terms and conditions in contracts as well as different cost distribution to new large load customers. These rules apply only to large loads of more than 100 MW.

More recently, in Pennsylvania, the Public Utility Commission (“PA PUC”) issued a Tentative Order in which it solicited public comment to address the impacts of data center growth in PJM. Among the issues considered in the Tentative Order was defining what

⁶⁵ *Id.* at 12.

⁶⁶ Electric Reliability Council of Texas, *Large Load Integration*, <https://www.ercot.com/services/rq/large-load-integration>.

⁶⁷ Texas Legislature Online, Senate Bill 6, Sec. 37.0561(c), 89th Leg. (effective June 20, 2025).

⁶⁸ News Release, Georgia Public Service Commission, *PSC Approves Rule to Allow New Power Usage Terms for Data Centers*, (Jan. 23, 2025), https://psc.ga.gov/site/assets/files/8617/media_advisory_data_centers_rule_1-23-2025.pdf.

constitutes a large load. For the purposes of Tentative Order, the PA PUC proposed a threshold of 50 MW for an individual customer and 100 MW in aggregate. In establishing these thresholds, the PA PUC stated that

We find a Large Load Customer should be defined as 50 MW Individually or 100 MW in the aggregate. This threshold aligns with similar tariffs issued in Ohio, Indiana, and West Virginia in the PJM Interconnection LLC (PJM) territory. However, as these states have individual thresholds higher or the same as aggregate thresholds, we invite further comment on defining individual versus aggregate thresholds as well as on the threshold amounts.⁶⁹

While there is no consensus as to a threshold MW level for what constitutes a “large load,” as discussed above, multiple state and RTO programs define such thresholds to be no lower than 50-100 MW. Entergy Services encourages the Commission to reconsider the 20 MW threshold in the proposed ANOPR and establish a higher threshold (100 MW) that is more targeted to the unique challenges involved in interconnecting the types of large loads contemplated by the proposed ANOPR. A 20 MW threshold is too low to be practicable, and it is also so low as to invite potential inefficiencies and increased regulatory burden in administering any program promulgated by a Final Rule in this proceeding.

VI. The Commission Must Prioritize Reliability Concerns

As with generator interconnections and transmission planning, when adopting rules related to the interconnections of large loads, maintaining grid reliability must remain a priority.⁷⁰ Entergy has identified the following reliability-related concerns that should be addressed in a Final Rule.

⁶⁹ PA Pub. Util. Comm’n, *Interconnection and Tariffs for Large Load Customers*, Docket No. M-2025-3054271, Tentative Order at 6 (Nov. 6, 2025).

⁷⁰ *E.g.*, *Bldg. for the Future Through Elec. Reg'l Transmission Plan. & Cost Allocation*, Order No. 1920, 187 FERC ¶ 61,068 at P 20, *order on reh'g & clarification*, Order No. 1920-A, 189 FERC ¶ 61,126 (2024), *order on rehearing and clarification*, Order No. 1920-B, 191 FERC ¶ 61,026 (2025).

First, the proposed ANOPR states that “hybrid facilities should be studied based on the amount of injection and/or withdrawal rights requested. For example, a hybrid facility consisting of a 500 MW load and a 600 MW generating facility may seek no withdrawal rights and 100 MW of injection rights.”⁷¹ The Commission should be mindful of three potential problems with this proposal:

(a) It would be overly simplistic to assume that a hybrid load’s net injection or withdrawal impacts on the grid will be constant over any period of time. Reliability issues can arise if a study of a hybrid facility assumes a certain level of energy injections onto the grid, but injections in fact exceed that level, or if no withdrawal rights are assumed but withdrawals occur. Indeed, the ANOPR appears to recognize that issue, stating that “any hybrid interconnection shall be required to install the system protection facilities necessary to prevent unauthorized injections or withdrawals that exceed the respective rights.”⁷² The Commission should recognize, however, that even if system protection facilities are installed, unauthorized injections or withdrawals may occur.

(b) Even if such system protection facilities could work perfectly, it is a mistake to assume that a *net* injection of 100 MW (where the actual withdrawals are not studied) has the same effect on the transmission system as a 100 MW generator (with no actual load). In other words, netting should not affect the way an interconnection request is studied. Studying hybrid facilities in the manner contemplated by the proposed ANOPR may fail to identify needed network upgrades, because it will be blind to potentially substantial new loads, as long as those new loads are “hybrid.”

⁷¹ Proposed ANOPR at P 22 (footnote omitted).

⁷² *Id.* at P 23.

(c) With regard to withdrawals from the grid, the risk of instantaneously tripping generating facilities due to over- or undersupply has the potential to cause cascading issues arising from voltage disturbances. If, under the example in the proposed ANOPR, the hybrid load is only 400 MW at a particular point in time, the hybrid facility would need to ensure that the generating facility's output does not exceed 500 MW at that time. Otherwise, reliability could be compromised. In the reverse case, where a 400 MW generator is serving a 500 MW load, in actual practice, the net load to the system will be anywhere between 100 MW and 500 MW, as the generator may be unavailable at times due to planned or forced outages. Under the Commission's proposal, both the generator and the load would be approved for connection to the system based on the study of a single operating case for each proposal. This is inadequate.

In any case, the Commission should (a) clarify who has authority to operate the technology installed to prevent unauthorized injections and withdrawals, (b) specify what actions the system operator can take if the injection rights or withdrawals are exceeded, (c) establish penalties that will ensure the hybrid customer has an economic incentive to operate in the manner for which the hybrid resource was planned, (d) make clear that the transmission owner and operator have no liability for any action taken while operating system protection technology, and (e) clarify that ultimately the Transmission Provider has authority to determine which scenarios must be analyzed to reliably interconnect generators and load.

Second, under the rules suggested in the proposed ANOPR, "the interconnection study of large loads that agree to be curtailable and hybrid facilities that agree to be curtailable and dispatchable should be expedited."⁷³ The proposed ANOPR states that "[t]he system operator's ability to control such facilities through curtailment and/or dispatch must be sufficient for the

⁷³ *Id.* at P 24.

system operator to integrate the facility into both operations and system planning.”⁷⁴ For similar reasons as those just discussed, any rules adopted in this regard should (a) make each party’s role in curtailment and dispatch clear, (b) ensure that any facility that agrees to be curtailable is curtailed within specified time limits, and that any facility that agrees to be dispatchable is fully dispatchable and on Automatic Generation Control, (c) adopt penalties that provide the correct economic incentives, and (d) make clear that the transmission owner and operator have no liability for any action taken to curtail the curtailable load or dispatch the dispatchable generation in accordance with the rules of curtailment and dispatch.

Third, the specific geographical location and interconnection design of a load and the generator upon which it depends must be provided to transmission owners to allow for efficient planning and operation of the bulk electric system. Reliability will be threatened if the rules simply require a load and generator to identify each other as part of a “hybrid” configuration, without detailed analyses to ensure that the load and generator are also located in areas that can maintain the reliability of all customers. Any action the Commission takes should ensure that the transmission owners have sufficient opportunity to conduct such studies.

Fourth, the interconnection of large loads has reliability implications from an overall supply and resource adequacy perspective. Any final rule that the Commission issues must factor in these considerations. Large loads should not be permitted to interconnect without consideration of available generation capacity. For example, if existing generation is being used to serve a large load (rather than the construction of new generation), studies to ensure reliability and local resource adequacy will be needed. Any additional steps, including possible

⁷⁴ *Id.*

construction of transmission upgrades, identified in such studies would need to be implemented before the new large load can be served.

In States where vertically-integrated utilities serve retail loads, these considerations are retail-jurisdictional, and as described above, States should continue to have jurisdiction over resource planning. The Entergy Operating Companies' retail regulators ensure that there is an energy and capacity resource plan for new large load customers. The Commission should not adopt any rules that would impede States' roles in ensuring reliability and resource adequacy. Instead, it should — to the extent possible, consistent with its jurisdiction — support resource adequacy measures that States and utilities pursue. The Commission's approval of processes like MISO's ERAS process is one example of a supportive measure that the Commission has taken to facilitate the addition of new generation, without intruding on the States' jurisdiction over resource adequacy.

Failing to ensure that there is sufficient available generation capacity to serve a new large load could harm reliability or, because an unmitigated or uncovered large load in an RTO or ISO affects the reliability risk for all market participants, result in an unjust and unreasonable cost shift to other classes of customers. Absent rules ensuring that each LSE carries and satisfies its fair responsibility for reliability and resource adequacy, a less responsible LSE in an RTO could “free ride” on the backs of those that engage in more responsible resource adequacy planning. The Commission should coordinate with the States and with NERC to ensure that the generation side of the interconnection equation is not overlooked and the authority of States is not abrogated.

VII. Conclusion

As discussed above, the Entergy Operating Companies appreciate the Commission's consideration of these important issues, and ask that the Commission factor into its decision-making the legal and policy recommendations identified above.

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